

DEVELOPMENT AGREEMENT

THIS DEVELOPMENT AGREEMENT (the "Agreement") is made this ____ day of October, 2013, by and between the City of Cheyenne, a political subdivision of the State of Wyoming, whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming, 82001 (the "City"), and Edward George Cole, Casey Lee Cole, Christy Kay Cole, now known as Christy Marziano, Kevin Louis Cole, Lester Lee Cole, Ann M. Cole, and their spouses, guardians, conservators, trustees, and other representatives and assigns, (hereinafter collectively referred to as "the Coles"), 15469 Harvest Mile Road, Brighton, Colorado 80603, and is intended to facilitate the development of 8.45 acres of land (containing approximately 368,082 square feet), which land is legally described in Exhibit A attached hereto.

WITNESSETH

WHEREAS, the Coles are the owners of certain real property located within the municipal boundaries of the City of Cheyenne City, more particularly described in Exhibit A, and hereinafter referred to as the "Development Area;" and

WHEREAS, the Coles have proposed a final plat to divide the Development Area into certain lots and blocks to be known as the "Terre Pont Subdivision" which are described and depicted in the proposed final plat map, attached hereto as Exhibit B, and fully incorporated herein by reference; and

WHEREAS, the City has determined that it is in the best interests of the residents of the City that certain roadway improvements adjacent to and near the Development Area be constructed by and at the expense of the Coles in connection with the platting and future development of the Development Area and that the terms and conditions of this Development Agreement are entered into for the purpose of establishing those development requirements as a condition of the approval of the final plat for the Terre Pont Subdivision; and

WHEREAS, it is to the mutual benefit of the parties to enter into this Agreement.

NOW, THEREFORE, in consideration of the mutual promises, covenants and agreements hereinafter contained and other good and valuable consideration, the sufficiency and adequacy of which are hereby acknowledged by the parties, the parties hereto agree as follows.

1. Development Area. This Agreement covers all of the development area (the "Development Area") set out in Exhibit A, attached hereto and incorporated by this reference, all of which is owned as of the date of this Agreement by the Coles.
2. Intent of the Parties. It is the intent of the parties to this Agreement to impose certain duties and responsibilities on the Coles to construct certain street and related infrastructure improvements in connection with the present and future development of the Terre Pont Subdivision. The duties and obligations of the Coles as specified herein are intended to constitute a covenant which shall run with the land to all successors and assigns of the Coles and for that purpose this Development Agreement shall be recorded, at the expense of the Coles, in the books

and records of the Laramie County Clerk and *ex officio* register of deeds to provide public notice of said covenant.

3. Duration of Agreement. This Agreement shall remain in full force and effect until such time as the Coles, and their successors in interest, have complied with all of the duties and obligations specified in this Development Agreement with regard to the construction of street and related infrastructure improvements as provided for herein, or until such time as the parties hereto, or their successors and assigns, revoke, cancel or amend this Agreement through a written instrument executed with the same formalities as this Agreement, whichever occurs first. The parties hereto shall cause any amendment to this Agreement to be recorded in the books and records of the Laramie County Clerk.

4. Street Improvements.

(a) The Coles shall, at their expense, and in accordance with City and BOPU specifications, construct the south half of the standard street section for Rue Terre, within its platted right-of-way, from the west edge of Lot 1, Block 1, to the east edge of Lot 2, Block 1 of Terre Pont Subdivision. This construction shall be completed prior to the issuance of any Certificate of Occupancy for any improvement to be constructed on Lot 1, Block 1 of Terre Pont Subdivision. The construction of the street section governed by this paragraph is graphically illustrated in Exhibit C attached hereto.

(b) The Coles shall, at their expense and in accordance with City and BOPU specifications, construct the south half of the standard street section for Rue Terre, within its platted right-of-way, from the east edge of the Terre Pont Subdivision to reach and be connected to the existing section of Rue Terre which has already been constructed. This construction shall be completed prior to the issuance of any Certificate of Occupancy for any improvement to be constructed on Lot 2, Block 1 of Terre Pont Subdivision. In the event the City pays for the construction of this section of Rue Terre before development of Lot 2, Block 1 of Terre Pont Subdivision, the entire costs of said construction shall be allocated, as a development cost, to Lot 2, Block 1 of Terre Pont Subdivision and said costs shall be paid by the Coles, or their successors in interest to said Lot and Block, prior to the issuance of any building permit for any improvement on said Lot and Block. In the event a developer other than the City pays to construct this section of Rue Terre, the provisions of Chapter 1.16 of the Cheyenne City Code shall apply. The construction of the street section governed by this paragraph is graphically illustrated in Exhibit C attached hereto.

5. Other Improvements. The terms and conditions of this Development Agreement are not intended and shall not be construed to constitute a full and complete itemization of improvements which may be required by the City and/or the City of Cheyenne Board of Public Utilities ("BOPU") in connection with the development of Lot 1, Block 1, Lot 2, Block 1, Terre Pont Subdivision, or any adjoining property owned or controlled by the Coles or their successors and assigns. Extensions of water, sanitary sewer, storm sewer, road improvements, and other items identified by the City and/or BOPU may be required in addition to the terms and conditions of this Development Agreement. The Coles, and their successors and assigns, shall comply with all standard policies, procedures, and requirements of the City and BOPU regarding on-and off-site improvements.

6. Cooperation. The parties agree that they will cooperate with one another in accomplishing the terms, conditions and provisions of this Agreement and will execute such additional documents as are reasonably necessary to effectuate the same.
7. Amendments. Any changes, modifications, revisions or amendments to this Agreement that are mutually agreed upon in writing by the parties hereto shall be incorporated by written instrument, signed by all parties to this Agreement.
8. Notices. All notices arising out of, or from, the provisions of this Agreement shall be in writing and given to the parties at the addresses set out above by certified mail, return receipt requested, with copy to: Edward George Cole, et al., 15469 Harvest Mile Road, Brighton, Colorado 80603.
9. Remedies and Enforcement. In the event the Coles or the City defaults or is deficient in the performance of any term of this Agreement, the Coles or the City shall have the right to exercise all remedies provided by law or in equity.
10. Third Party Beneficiaries. It is expressly understood and agreed that enforcement of the terms and conditions of this Agreement, and all rights of action relating to such enforcement, shall be strictly reserved to the City and the Coles, and nothing contained in this Agreement shall give or allow any such claim or right of action by any other third party on this Agreement. It is the expressed intention of the City and the Coles that any person other than the City and the Coles receiving services or benefits under this Agreement shall be deemed to be an incidental beneficiary only.
11. Waiver. A waiver by any party to this Agreement or the breach of any term or provision of this Agreement shall not operate or be construed as a waiver of any subsequent breach by either party.
12. Successors and Assigns. As used in this Agreement, the term "the Coles" and "City" shall include all successors, transferees, and assigns of such parties, and all such parties shall have the right to enforce this Agreement and shall be subject to the terms of this Agreement as if they were the original parties hereto.
13. Severability. Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of the Agreement shall continue in full force and effect as if the illegal or unenforceable term was omitted, except that the breach of a condition precedent shall void this Agreement through lack of formation.
14. Governmental Immunity. The City does not waive governmental immunity or any other defenses provided by law and specifically retains all immunities and defenses available pursuant to W.S. § 1-39-101 *et seq.* and all other State laws.
15. Kickbacks. The Coles warrant that no gratuities, kickbacks, or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement.

16. Entirety of the Agreement. This Agreement represents the entire and integrated agreement between the parties and supersedes all prior negotiations and agreements, whether written or oral.

17. Effective Date. This Agreement shall be effective upon filing with the Laramie County Clerk and *ex officio* register of deeds.

IN WITNESS WHEREOF, the parties hereto have executed this Development Agreement on the date first above written.

CITY OF CHEYENNE, WYOMING (SEAL)

By: _____
Richard L. Kaysen, Mayor

ATTEST:

Carol A. Intlekofer, City Clerk

By:

Edward George Cole

Casey Lee Cole

Christy Kay Cole, now known as Christy Marziano

Kevin Louis Cole

Lester Lee Cole

Ann M. Cole

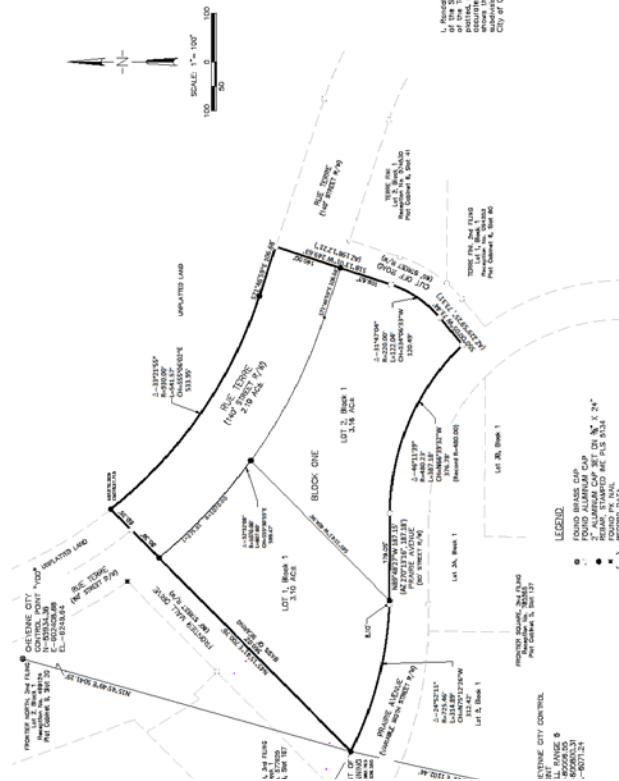
Exhibit A

Terre Pont Subdivision

Lots 1 and 2, Block 2,

being a replat of portion of the South $\frac{1}{2}$ of Section 20, T.14N., R.66W., 6th P.M.

Cheyenne, Wyoming



SURVEYORS' CERTIFICATE

1. Randall S. Stetzer, do hereby certify that I am a Professional Land Surveyor of the State of Wyoming, that this Plot is a lot, correct and complete part of the Town Plot Subdivision to the City of Cheyenne, Wyoming, as laid out, patented, dedicated and shown herein, that such plot was made from an accurate survey of said property by me or under my supervision and correctly shows the location and dimensions of the lot, one right-of-way of said lot, the location and dimensions of the lot, and the location and dimensions of the City of Cheyenne, subdivisions, easements, a subdivision of land, and the location and dimensions of the lot, and the location and dimensions of the lot.

Approved by the
this _____ day

Development Clin
Approved by the
this _____ of

Map

ACKNOWLEDGMENTS

STATE OF _____ } SS
COUNTY OF _____ }
The dedication instrument was acknowledged before me this _____ day of _____, 2013,
by Kevin Louis Cole.

This Final
Laramie County

Notary Public, _____ County, _____
My Commission Expires _____

County Clerk on

Notary Public, _____ County, _____
My commission Expires _____

STATE OF _____ } SS
COUNTY OF _____ }
The dedication instrument was acknowledged before me this _____ day of _____, 2013,
by Ann M. Cole.

Notary Public, _____ County, _____
My commission Expires _____

TEF

LEONARD J. COHEN
STUDENTS' RIGHTS DIVISION

DEDICATION

© Cole, Casey Lee Cole, Christy Kay Cole, Kevin Louis Cole, Lester Lee Cole, all property described as follows:

1430 B. EMM, R. B. M. *City of Champaign, Champaign County, Champaign, wild annual of sand*

LEWIS, R. 2000. *See* F. M., and J. C. Thompson, 2000. *See* Thompson, and Lewis, 2000.

with 2nd Filing, a subdivision plat recorded as Reception Number 463124 and filed in P/C and Records in Chappone, Wyoming, being a set rebar with 2 inch aluminum cap stamped

405°15'41"E along the southeasterly line of said Frontier North 2nd Filing and its N 45°15'41"E to a set corner with 2 inch aluminum cap stamped BM, US 5134, thence along

Stamp: IME, LS 5134, then: 57146591, 106.68 feet to a found aluminum cap
 Fall 541.57 feet, and curve having a radius of 930.00 feet and chord bearing 355.0602° E,
 incl. a subdivision also recorded as Remotion Number 0745.10 and filed in 22.6. Surt 41. in

said Terra for the following three courses: thence $518^{\circ}13'01''$ W, 249.63 feet [record
um cap stamped LS 2500, thence along an arc of a curve concave to the northwest 122.04

head bearing 134°06'13"W, 120.49 feet [record length of 122.04 feet and radius of 220.00 d, thence 55°00'05"W, 73.44 feet [record azimuth 229°59'25", 73.31 feet) to intersect

to being the northerly line of Frontier Square, 2nd Flng, a subdivision plat recorded as 17 in said Clerk's office, at a found aluminum cap stamped U.S. 2500; thence along said

| feet, said curve having a radius of 400.23 feet and chord bearing of N66°39'32"W, 376.78
feet; and ending one following curve course, thence along an arc of a
circular square, and ending one following curve course, thence along an arc of a

500, thence along an arc of a non-tangent curve concave to the northeast 314.83 feet, said
 leg N75°12'26"W, 312.42 feet, to the Point of Beginning of this parcel description,

d, more or less, and subject to all easements, rights of way and restrictions of record.

and in accordance with their desires, and do hereby dedicate to the public the streets and

[illegible]

Cossey Lee Cole
Christy Kay Cole now knows as
Christy Morzano

[illegible]

LEWIS LEE COLE
JOHN HILL COLE

Exhibit C

